



# The Global Pact for the environment: a general instrument to face climate change

Domenico Amirante<sup>1</sup>

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## Abstract

Global Pact for the Environment emerged as an answer to the need for a general legal instrument on climate change which produces binding obligations. It is not just another international legal instrument which places legal obligations on state and non-state parties to address climate change. Rather, it is a novel instrument which links with national Constitutions and introduces innovative international legal principles which bind state and non-state actors as well as multinational corporations in working together towards climate change. Also, the instrument moves beyond the polluter pays principle to focus on taking precautionary measures of maintaining as well as restoring the environment. Despite the criticism of the Pact being expressed by some scholars, the Global Pact presents itself as a promising document geared to address the pressing issue of climate change.

**Keywords** Global Pact for the Environment · constitutionalization of environmental rights · principle of non-resilience

## 1 The struggle against climate change and the need for general legal instruments: the Global Pact for the environment

In recent years, climate change has been accelerating at an unprecedented and unexpected speed. Today, people all over the world in their daily lives are facing environmental catastrophes, hurricanes, cyclones, floods and changes in the hydrogeological structure of entire regions caused by climate change, with the risk of witnessing their native land being swallowed by the sea.<sup>1</sup> This phenomenon was finally certified

<sup>1</sup> This is the critical situation that several small insular states are facing today. For any further information on the political perspective of the small islands and the rise of the sea level due to climate change,

Domenico Amirante—Full Professor.

✉ Domenico Amirante  
do.amirante@gmail.com; domenico.amirante@unicampania.it

<sup>1</sup> Department of Political Science, University of Campania “Luigi Vanvitelli” (University of Naples II), Caserta, Italy

by the Special Report of the IPCC (Intergovernmental Panel on Climate Change, established by the UN), presented on 1 October, 2018 in Incheon, South Korea.<sup>2</sup> At that time, it was stated that if we want to save our planet, it will be necessary to reduce the emissions of greenhouse gases at a level below the already very ambitious thresholds defined by the 2015 Paris Climate Agreement (COP 21) by modifying the modalities of production, energy supply and, in short, our lifestyle. The problem is that due to the indecisiveness of several countries and also the withdrawal of some signatory states, the Paris Agreement to a great extent has remained a dead letter to this day. The evidence of the difficulty in truthfully implementing this Treaty was confirmed by the meagre output of COP 24 held in Katowice, Poland, in December 2018, where no real action was taken.

Considering the urgency of significant actions to face climate change, this scenario demonstrates the failure of the current global environmental governance, claimed by several scholars.<sup>3</sup> The urge for a change in global environmental governance was finally certified by the UN Report, issued as recently as December 2018, significantly titled “Gaps in international environmental law and environment-related instruments”.<sup>4</sup> According to this Report, the “structure of international environmental governance is characterized by institutional fragmentation and a heterogeneous set of actors”<sup>5</sup>; this problem is exacerbated by a proliferation of environmental agreements with separate mandates that “ignore the unity, interconnectedness and interdependence of the Earth’s ecosystem”, and “create potential for overlap and conflict, institutional and policy incoherence and increased financial and administrative burdens on states parties”.<sup>6</sup> A panoply of economic and legal instruments has been already created, set up and implemented to deal with the threat of climate change, both from the perspective of its reduction and of adaptation to it.<sup>7</sup>

Footnote 1 (continued)

see Alliance of Small States Island (Reports and data available at <http://aosis.org/> last accessed 5 February 2019). Also see Maxine Burkett, *A Justice Paradox: Climate Change, Small Island Developing States, and the Absence of International Legal Remedy*, in *INTERNATIONAL ENVIRONMENTAL LAW AND THE GLOBAL SOUTH* 435–450 (Shawkat Alam et al. eds., 2015).

<sup>2</sup> IPCC Secretariat, Progress Report: International Conference on Climate Change and Cities, Forty-Eight Session, Incheon, Republic of Korea, IPCC-XLVIII/INF. 1, Rev. 1. (Oct. 2018), <https://www.ipcc.ch/apps/eventmanager/documents/52/100920181041-INF1Rev1CitiesReport.pdf> (last visited Feb. 5, 2019). This report highlighted that “an IPCC special report on the impacts of global warming of 1.5 °C above pre-industrial levels and related global greenhouse gas emission pathways, in the context of strengthening the global response to the threat of climate change, sustainable development, and efforts to eradicate poverty”.

<sup>3</sup> Sam Adelman, *Rethinking Global Environmental Governance*, in *NEW FRONTIERS IN GLOBAL ENVIRONMENTAL CONSTITUTIONALISM* 296–307 (E. Daly et al. eds., 2017); On the North–South divide in environmental law, see Carmen C. Gonzales, *Bridging the North–South divide: International Environmental Law in the Anthropocene*, 32 *PACE ENVTL. L. REV.* 407, 407–433 (2015); See also LOUIS KOTZÉ, *GLOBAL ENVIRONMENTAL GOVERNANCE: LAW AND REGULATION FOR THE 21<sup>ST</sup> CENTURY* (2012).

<sup>4</sup> U.N. Secretary-General, *Gaps in international environmental law and environment-related instruments: towards a Global Pact for the Environment*, U.N. Doc. A/73/419 (Nov. 30, 2018).

<sup>5</sup> *Id.* at 33.

<sup>6</sup> U.N. Secretary-General, *supra* note 4, at 34.

<sup>7</sup> AGNÈS MICHELOT (Ed.), *JUSTICE CLIMATIQUE/CLIMATE JUSTICE*, (2016), it would be impossible here to refer to the vast bibliography on climate change, even if one thinks only to the legal aspects, so let me just recall the collective book (in English and French languages) which reflects on different interdisciplinary approaches to climate change.

However, if we want to “reimagine” climate change governance it is very important to start from a general reassessment of environmental law and policies, and, in legal terms, to general rules being capable of reorganizing the chaos of the multiplicity of different and often contradictory norms in this sector.

In other words, it is necessary that the international community in all its components – international organizations, states, corporate firms and also citizens and organizations of civil society – make a decisive common effort to prevent national selfishness and the greed of international economic groups from definitively compromising the “basis of life” on earth. For these reasons, in 2016, an important initiative was launched by an international network of experts from around the world which comprised of the “Group of Experts for the Pact” (GEP), presided by Laurent Fabius, President of the French Constitutional Council and President of the COP 21, and coordinated by the Environment Committee of the *Club des Juristes*, a leading think tank in French society. The group of experts has drawn up, through a long drafting process, a Global Pact Plan, which brings together in a single international document the fundamental principles of environmental law and also proposes some innovative ones.

In just a few months, the Global Pact for the Environment gained considerable prominence in public opinion and in national and international political forums. The Pact was officially presented on June 24, 2017, at the University of the Sorbonne in Paris, by French President Emmanuel Macron in the presence, among others, of the former UN Secretary Ban Ki Moon, President Fabius of Constitutional Council and to dozens of lawyers from worldwide. On that occasion, the President of the French Republic pledged to present the draft of the pact to the General Assembly of the United Nations, thus fulfilling the commitment on September 19, 2017, in the margins of the ministerial week of the 72nd session of the General Assembly. According to the proponents, this new document, reiterating the will to actively engage in the fight against global warming, is the only valid instrument to address the issue of environmental protection at a global level in this particular historical and political moment.

On March 19, 2018, the European Commission also asked the Council for a mandate to negotiate a global environmental pact in the name of the European Union. The request, in the form of a recommendation, followed the aforementioned initiative presented by Macron in September 2017 at the United Nations General Assembly in New York. The European Commission, with the Recommendation COM 2018-138, aims to ensure that all EU Member states work together to ensure a high level of environmental protection. Finally, on 10<sup>th</sup> May 2018, the United Nations General Assembly approved, with a resolution entitled “Towards a Global Pact for the Environment”, that marks the opening of international negotiations for the approval of the Pact.<sup>8</sup> This is a great initial success, which could lead, for the first time, to the signature of a binding general and multilateral agreement for the protection of the environment. The Pact would reaffirm the responsibility of the international community, and of the single states, involving them in actively working to

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<sup>8</sup> Irina Moroianu Zlatescu, *Towards a Global Pact for the Environment*, 3 L. REV. 123 (2017).

stop the planetary environmental disaster that is looming. The process for adopting the Pact was officially open in Nairobi at the beginning on 2019, with the first substantive session of the “Ad hoc Open-ended Working Group towards a Global Pact for the Environment”.<sup>9</sup>

Obviously, at present, there is neither an absolute certainty on the final approval of the Pact nor on the full transposition of its contents. However, this initiative has contributed to bringing environmental issues, and primarily climate change, back to the centre of the world political scene, in a phase in which the time factor is particularly important for all of us. In other words it has stressed that it is time for the international community to “take environment seriously”.<sup>10</sup>

## 2 The origins of the Global Pact for the Environment

Various international environmental instruments already exist in international law. Amongst them, the Stockholm Declaration 1972 and the Rio Declaration 1992 have been iconic for recognition of some of the most shared principles of international environmental law. Yet, considering the “soft” nature of international legal instruments provided for managing the environmental matter, the lack of a legal framework composed by enforceable obligations persists as a major problem. In fact, declarations usually expose a scope and a limit, avoiding a specific legal discipline. In this legal framework, the Global Pact for the Environment intends to be an umbrella text which consolidate more than 500 international instruments, directly or indirectly related to the environment.<sup>11</sup> But the sources of inspiration of the pact can also be traced back to several national Constitutions reflecting a growing consensus on these principles. Among them the Charter of the Environment, in force since 2005 in France, represent a starting point, since it includes substantive rights and duties of individuals, which come together with procedural rights and public policy guidelines.<sup>12</sup> The other international legal tool that lies at the heart of the Global Pact is the Paris Agreement 2015, which since its adoption, has reflected the

<sup>9</sup> See IISD, *Summary of the First Substantive Session of the Ad Hoc Open Ended Working Group towards a Global Pact for the Environment: 14-18 January 2019*, 35 EARTH NEGOTIATIONS BULLETIN, <http://enb.iisd.org/unesp/globalpact/oewg1/> (last visited Feb. 5, 2019).

<sup>10</sup> This expression was used by the President of the Environment Committee of the *Club des Juristes*, in an introductory Article to the Pact, see Yann Aguila, *Adopting an International Covenant for the Protection of the Environment Taking Environmental Rights Seriously*, <https://www.scribd.com/document/330275038/Yann-Aguila-International-Covenant-for-Protection-of-Environment> (last visited Jan. 31, 2019).

<sup>11</sup> LE CLUB DES JURISTES, TOWARDS A GLOBAL PACT FOR THE ENVIRONMENT 16 (2017), [https://www.leclub-desjuristes.com/wp-content/uploads/2017/05/CDJ\\_Pacte-mondial-pour-lenvironnement\\_Livre-blanc\\_UK\\_web.pdf](https://www.leclub-desjuristes.com/wp-content/uploads/2017/05/CDJ_Pacte-mondial-pour-lenvironnement_Livre-blanc_UK_web.pdf) (last visited Jan. 31, 2019) [hereinafter referred to as GEP WHITE PAPER].

<sup>12</sup> *Id.* at 20. Here it is noted that “The Charter is thus the entry point to the fundamental principles of environmental law within the national constitutional sphere. It establishes, inter alia, the right to a balanced environment (Article 2), the prevention principle (Article 3) and the precautionary principle (Article 5), which can now radiate throughout French law.”

urgency felt by nations to reduce the anthropogenic greenhouse gas concentration in the atmosphere by a process that is fair, objective, active and tiered.<sup>13</sup> The major strength of the Global Pact is that it will be enforceable, adding substance to all the promises assured by the Paris Agreement.

An interesting description of the nature and the role of the Global Pact is pointed out by Rene Cassin, Nobel Prize winner and one of the most important authors of the Pact, who imagines the Pact as a porch of a temple standing on four pillars: the first pillar represents personal rights and liberties, the second pillar represents the rights of individual vis-à-vis the community and in relation to the outside world, the third pillar represents the spiritual faculties, and the fourth pillar represents the economic, social and cultural rights. On the top of these columns, Cassin imagines a gable that binds individuals with the society.<sup>14</sup> This image reproduces the manifold essence and the plurality of fields in which the Global Pact would make effects, combining the legal framework with an international state-based demand to merge economic and environmental instances, as well as the community demand to care for the environment.

### 3 The relation of the Global Pact with national Constitutions

According to the introductory notes to the Global Pact for the Environment, it intends to be a fundamental tool for all the subjects involved in environmental governance and to represent the “lowest common denominator” of many international, constitutional and legislative provisions already existing in most of the member countries of the international community. The Pact would, therefore, emerge as a conclusive element of a long legislative and constitutional evolution that, since the seventies of the last century, made environmental protection one of the crucial elements for the action of national governments. The Pact reflects this worldwide constitutional evolution and is clearly inspired by it, as specified in the “White Paper” introducing it. For the authors of the Pact “the constitutionalisation of fundamental principles leads to the strengthening of their status in domestic law and the facilitation of their implementation on a more global level, better than their embodiment in a specialized and sector-based approach”.<sup>15</sup> Thus, the strain on environmental rights and principles contained in the Global Pact for the Environment, on the one hand, reflects and reinforces a growing consensus on these principles and, on the other hand, offers a means of guaranteeing their impact and effective implementation at the national level.

The Pact would also have a role in the most recent Constitutions, generating a new approach regarding the articulation of the relations between state and citizens. However, the effect of this legally binding document will depend largely on

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<sup>13</sup> GEP WHITE PAPER, *supra* note 11, at 18.

<sup>14</sup> Zlatescu, *supra* note 8, at 124.

<sup>15</sup> GEP WHITE PAPER, *supra* note 11, at 19.

the social and legal approach of the countries. For this reason, some of them will need to integrate the principle of the Pact into their domestic laws.<sup>16</sup> For example, in countries like the United States where there are no written constitutional norms on environment, the Global Pact for the Environment would be considered as non-self-executing and would require domestic laws for its implementation. There is a similar situation also in other polluting-titans, such as China and Russia. Of course, the enforcement of the Pact can be reached also through judicial activism, as in the case of the Supreme Court of India, which held that customary international law can be implemented in India also in the absence of a specific legislation.<sup>17</sup>

Beyond this, we must consider that the issues related to legal aspects are not the only concern. In fact, sometimes soft laws find direct implementation, and on other occasions even binding treaties remain unimplemented due to strong disagreements about the substance and procedure laid down. Of course, the Pact cannot be merely reduced to soft law, since it establishes the rights of individuals to healthy environment and makes it imperative to implement this right through state norms. Rather, it needs to be adopted in the form of domestic laws and absorbed into national legal systems with laying down of specific procedure for making claims in cases of violations.

The Pact also involves important legal effects, requiring to states some specific performance through its newer principles, which prohibit degradation of environment and obliges restoration of eco-system rather than paying compensations. Hence, while absorbing the Pact into the domestic system, countries need to be careful about the principles in the Pact they emphasize on. Since the Pact is an umbrella document, it provides for an assortment of principles, so that the principles introduced in the national legislations will reflect the attitude of countries and the genuineness of their concern for the environment.

## 4 Structure and contents of the Global Pact

The Global Pact is written in a direct style and based on a very simple structure. After the Preamble, there is the first part presenting general environmental rights and principles (Articles 1 to 8), while the second part contains some classical procedural environmental principles (i.e. access to information, access to justice, etc., in Articles 9 to 13). The most innovative part is the third one (Articles 14 to 20), where new principles such as the non-regression or the resilience of environment are proposed, along with the much needed principle defined as “diversity of national situations” (Article 20). The Pact then closes with some articles dedicated to monitoring, implementation and entry into force (Articles 21 to 26).

Article 1 of the Pact opens with a definition of the right to healthy environment, which provides that this right must guarantee not only full health and wellbeing, but

<sup>16</sup> Cymie R. Payne, *A Global Pact for the Environment*, 22 AMERICAN SOC'Y OF INT'L L. INSIGHTS 12 (2018).

<sup>17</sup> *Vellore Citizen's Welfare Forum v. Union of India*, (1996) 5 SCC 647.

also “dignity, culture and the realization” of the person in a holistic vision in which, in addition to the protection of the “basis of life”, the right to the environment also refers to a more complex relational dimension between man, environment and territory.<sup>18</sup> This article reflects the more recent evolution in environmental constitutionalism considering the relation between man and environment at the core of the constitutional system, and structuring the entire Constitution around this relation. For example, the new Constitutions of Ecuador (2008) and Bolivia (2009), represent, for many scholars, a “transition from a juridical anthropocentric orientation of rights to an eco-centric one”.<sup>19</sup>

Another particularly important emphasis concerns the “environmental duties” for the first time contained in an international document. As far as international duties on environmental matters are concerned, Article 2 expects that “Every state or international institution, every person, physical or legal, public or private, has a duty to protect the environment”. To this end, everyone contributes, at their own levels to the conservation, protection and restoration of the integrity of the Earth’s ecosystem”. It is important to note that the Pact refers not only to states, but also to people and to the civil society, directly concerning individuals and collective groups. The accent on the role of non-state actors and civil society, is another important benchmark of the Global Pact, stressed in the Preamble (“welcoming the vital role of non-state actors, including civil society, economic actors”) and then openly highlighted in Article 14. This article entitled as “role of non-state actors and subnational entities”, clearly emphasizes that “the Parties shall take the necessary measures to encourage the implementation of this Pact by non-state actors and subnational entities, including civil society, economic actors, cities and regions taking into account their vital role in the protection of the environment”.

The Global Pact then delineates the fundamental principles for the protection of the environment from Article 3 until Article 20. It starts from the most consolidated ones, constituting the main axis of environmental protection in recent decades, to some particularly innovative ones, among which, in particular, the principle of “non-regression of the environment” stands out.

Thus, the list of fundamental provisions enshrined by the Global Pact starts with general principles, such as those of integration and sustainable development and intergenerational equity (Article 3 and 4), to reproduce the “triad” of management principles of the environment commonly defined as: “polluters pays”, “prevention” and “precautionary” (Articles 5 to 8), which represent the backbone of the entire environmental protection system. The three principles are placed in an evolutionary path linked to the emergence of different epistemological models regarding the relationship between law and the environment, and form a system that assumes a prescriptive and structuring value towards the actions undertaken in the environmental

<sup>18</sup> See Article 1 of Global Pact of Environment, Le Club des Juristes, Global Pact for the Environment, (24 June, 2017), <https://www.iucn.org/sites/dev/files/content/documents/draft-project-of-the-global-pact-for-the-environment.pdf> (last visited Feb. 5, 2019) [hereinafter referred to as Global Pact].

<sup>19</sup> See Paola Villavicencio Calzadilla & Louis J. Kotzé, *Environmental constitutionalism and the ecocentric rights paradigm: the rights of nature in Ecuador and Bolivia*, in NEW FRONTIERS IN ENVIRONMENTAL CONSTITUTIONALISM 177 (E. Daly et al. eds., 2017).



field. This system is based on the centrality of the principle of prevention, understood as an ordinary modality of the action in the environmental field and which must therefore inform all the moments of public action, but, in present days, also of private action. Therefore, the other two principles perform both auxiliary and integrative functions with regard to prevention. For example, the “polluter pays” principle represents not only an instrument for integrating prevention objectives into economic activities and public and social policies (e.g. the so called “internalization” of environmental costs), but also a standard to be used in cases of “failure of prevention”, which, unfortunately, do not appear to be negligible at present.

The precautionary principle acts instead “upstream” and it is usually called upon to intervene in cases where the preventive approach cannot be applied. It is essentially based on the lack of faith in objective science on the part of law and politics. In this case, the law declares the incapacity of science to supply solutions to all environmental problems, and the consequent insufficiency of curative and preventive models. Here, the precautionary principle plays an active role, requiring the public actors, faced with situations of necessity, to make choices in any event, even when not supported by scientific accuracy. In my opinion, “this is one of the characterizing elements of the precautionary principle: the expansion of political and administrative discretion with regards to choices having a technical and scientific content. The precautionary principle brings out the change of legitimization between science and politics, placing the responsible political and administrative parties at the forefront of difficult decisions”.<sup>20</sup> In other words, this principle is the expression of a new institutional philosophy that is equipped to cope with uncertain or potential risks.

The Global Pact also specifies a series of procedural principles from Articles 9 through 13, namely on access to environmental information, public participation, and on access to justice, education and training, research and innovation. Then, it enunciates a series of innovative principles of great importance in the Articles 14 to 20. After the already mentioned principle concerning the “role of non-state actors and subnational entities” (Article 14), these innovative principles extend from the affirmation of the role of the effectiveness of environmental norms (Article 15) and the newest principles of resilience and non-regression (Articles 16 to 17, which will be described in the next paragraph of this paper), to conclude with a series of principles primarily aimed to define the “environmental relations” between states. Among the latter, must be noted the “diversity of national situations” principle (Article 20), according to which “the special situation and needs of developing countries, particularly the least developed and those most environmentally vulnerable, shall be given special attention”. This principle represents a further evolution of the “common but differentiated responsibilities” formula in terms of environmental protection. It is aimed at pursuing compensatory effects for those countries historically damaged by the disorderly and predatory growth of the main industrialized countries. Article 20

<sup>20</sup> Domenico Amirante, *Codification and Technical Rules in Environmental Law—Reflections on the French Experience*, in SCIENTIFIC EVIDENCE IN EUROPEAN ENVIRONMENTAL RULE-MAKING 99, 102 (Andrea Biondi et al. eds., 2003).



of the Pact acknowledges the different environmental conditions faced by developing countries.<sup>21</sup>

The Pact then concludes with a series of rules concerning the signing procedures, ratification and monitoring of its implementation (Articles 21– 26).

## 5 New principles in the Global Pact

The greatest merit of the Global Pact is grouping environmental law rights and principles in a single document and giving them binding force. If this is true for the right to healthy environment declaimed in a holistic perspective (Article 1), it is even more relevant for the already mentioned “triad” of the principles concerning the “management” of environment. But the real innovation of the Global Pact consists in the introduction of the “non-regression” principle, affirmed by Article 17. The non-regression principle states that “the Parties and their sub-national entities refrain from allowing activities or adopting norms that have the effect of reducing the global level of environmental protection guaranteed by current law”. In other words, this principle intends to prevent public authorities from making laws which adversely affect the environment. As pointed out by the renowned environmental scholar Michel Prieur<sup>22</sup> known as the academic “father” of this principle, non-regression is addressed to legislators and administrative bodies and is also a guide for judicial interpretation. For Prieur, environmental regression takes many forms: but “it is seldom explicit, since governments do not have the courage to announce backtracking in environmental protection officially for fear of an unfavourable public response from environmental and consumer NGOs”.<sup>23</sup> For this reason, “faced with this diversity of forms of regression, environmental lawyers must respond firmly and rely on implacable legal arguments”.<sup>24</sup>

According to Kenig-Witkowska the non-regression principles include both “the prohibition of the adoption of either new regulation in order to reduce the level of protection or ones which would be more favourable for the environment”.<sup>25</sup> F. Haumont, considering the long date experience of the application of this principle in Belgium, asserts that non-regression has an undeniable effect on the methodology used for drafting new laws and regulations. Referring to Belgium, Haumont highlights that “the legislative and executive authorities in their regulatory functions know that compliance with the principle of non-regression will be monitored a priori by the Legislative Division of the Council of State and a posteriori in the context of constitutional or administrative disputes ... the legislator (in the broadest sense)

<sup>21</sup> See Article 20 of Global Pact, *supra* note 18.

<sup>22</sup> See MICHEL PRIEUR & GONZALO SOZZO (Eds), *LA NON RÉGRESSION EN DROIT DE L'ENVIRONNEMENT* 547 (2012).

<sup>23</sup> Michel Prieur, *Non-regression in environmental law* 5 S.A.P.I.E.N.S 53 (2012), <http://journals.open-edition.org/sapiens/1405>.

<sup>24</sup> *Ibid.*, at 54.

<sup>25</sup> MARIA MAGDALENA KENIG-WITKOWSKA, *THE DRAFT GLOBAL PACT FOR THE ENVIRONMENT*, 24 (2018) <https://www.documents.clientearth.org/wp-content/uploads/library/2018-10-02-the-draft-global-pact-for-the-environment-ce-en.pdf>.

therefore anticipates this scrutiny by ensuring, as a matter of principle, that the proposed reform does not cause any significant regression”.<sup>26</sup>

The principle of resilience mentioned in Article 16 completes and integrates the non-regression requiring that “the Parties shall take necessary measures to maintain and restore the diversity and capacity of ecosystems and human communities to withstand environmental disruptions and degradation and to recover and adapt.”. According to Kenig-Witkowska, the principle can be referred back to the concept of “improvement” of the environment laid down in the Stockholm Declaration (Principle 1) or to the spirit of the 1982 World Charter for Nature. For this author, this principle means that “the purpose of environmental policy must be not only to remedy environmental damage but also to strengthen the capacity of ecosystems to recover and achieve equilibrium in the functioning of ecosystems”.<sup>27</sup>

## 6 Conclusion: the Global Pact for the environment, an open debate

Generally speaking the Pact has been welcomed and even strongly supported by most jurists and institutions, but it has also opened an interesting debate between the supporters of a robust recognition of the centrality of environmental protection in the legal order (at the international and constitutional levels) and those who are still sceptical about an international “juridification” of environmental protection through a general international binding document.

For Parejo Navajas and Lobel “the Global Pact, and the enforceable right to a healthy environment that it intends to codify, would be a milestone achievement in the fight for environmental protection” and a fundamental tool to fight against climate change.<sup>28</sup> In the same direction Zlatescu asserts that the Global Pact “would provide a text of general applicability that would lead to the coordination of norms and institutions in international environmental law” and it “would codify the principles stated in the agreements so far, establishing legal rights and responsibilities that can be invoked in national and international courts”.<sup>29</sup>

Among the critic assessments of the Pact, the most interesting to discuss comes from an article by Kotzé and French. These authors address two different kinds of

<sup>26</sup> Francis Haumont, *The revisited principles of environment*, draft paper presented at the Conference “Un Patto Mondiale per l’ambiente – A Global Pact for the Environment”, Naples, 29 October 2018; For more details on the Belgian experience, see also Charles-Hubert Born & Francis Haumont, *Le principe de non-régression en droit de l’environnement – la situation en Belgique*, in *LA NON RÉGRESSION EN DROIT DE L’ENVIRONNEMENT* 285–306 (Michel Prieur & Gonzalo Sozzo eds., 2012); See also *supra* note 22.

<sup>27</sup> KENIG-WITKOWSKA, *supra* note 25, at 23; See also Lia Helena Monteiro de Lima Demange, *The Principle of Resilience*, 30 PACE ENVTL. L. REV. 695 (2013).

<sup>28</sup> Teresa Parejo Navajas & Nathan Lobel, *Framing the Global Pact for the Environment: Why It’s Needed, What It Does, and How It Does It*, 30 FORDHAM ENVTL. L. REV. 32, 61 (2018) (The Global Pact can capitalize on the hopeful and aspirational momentum of the Paris Agreement to save lives, since it is the logical conceptual extension of the Paris Agreement, providing for democratic enforcement of commitments to fight climate and protect the environment alike, advocated by the Paris Agreement’s architect, Laurent Fabius).

<sup>29</sup> Zlatescu, *supra* note 14, at 129.

criticism to the Pact: firstly concerning the diplomatic and symbolic relevance of the Pact (and its level of contribution to global environmental law and governance) and, secondly, its potential at the operational level, both of international environmental law and of global environmental governance.<sup>30</sup> The authors claim that the Pact is very similar to the IUCN Draft Covenant (adopted in 1994),<sup>31</sup> being an umbrella document on international environmental principles. For them, the binding value of a document alone does not improve environmental quality and effectiveness of international environmental law, as it does not directly address the roots of inadequate environmental protection.<sup>32</sup>

Notwithstanding the interest of such criticism, the comparison between the Global Pact and the IUCN Draft Covenant on Environment and Development appears relatively narrow, according to two important perspectives: comparative methodology and understanding aims and effectiveness of the Global Pact. About the first point (the comparison between these two documents) it has to be noted that the IUCN Draft Covenant tries to consolidate and develop already existing environmental and developmental principles in a pure legal framework, which remains complex to understand and interpret without a technical background. The nature of these two documents is clearly different, as well as their aims: on one side, there is a 238 pages long text composed of 83 Articles grouped in 11 sections, on the other, there are 26 Articles providing a general framework or an evolving *milieu* for starting a global enforcement of environmental provisions.

Regarding the goals and the effectiveness of both documents, some remarks must be noted. As previously stated, legal and technical details are, of course, necessary and welcomed for providing a framework to the environmental discipline, but such kind of documents, despite their attitude, cannot be directly addressed to civil society and to individuals, and require intermediate hermeneutical activities by experts. On the contrary, the Global Pact for the Environment tries to create a general and coherent framework without falling into a merely legalistic perspective. It should be noted, in fact, that a strictly binding document would not have easily been accepted, discussed and signed by parties, especially by some states reluctant to limit themselves in such cases (the US contemporary environmental policy is a proper example and does not need supplementary explanations). According to these assumptions, it should be noted that the framers of the Global Pact for the Environment learned the lesson provided by the IUCN Draft Covenant: to become enforceable it must be accessible to the large public without sacrificing accuracy.

<sup>30</sup> Louis Kotzé & Duncan French, *A critique of the Global Pact for the environment: a stillborn initiative or the foundation for Lex Anthropocenae?*, INT'L. ENV. AGREEMENTS 811, 817 (2018).

<sup>31</sup> IUCN & ICEL, *Draft International Covenant on Environment and Development*, ENVTL. POL'Y & L. PAPER No. 31 REV. 3, <https://portals.iucn.org/library/sites/library/files/documents/EPLP-031-rev3.pdf> (last visited Feb. 5, 2019).

<sup>32</sup> Kotzé & French, *supra* note 30, at 817.

Kotzé and French also lamented that the Pact is not very human-rights centric.<sup>33</sup> On this matter, without denying that human rights and environment are intrinsically connected, we think that the institutional philosophy underlying the Pact tries to strike a balance between the recognition of rights and the enumeration of “rules of conduct” for all the subjects involved in environmental issues, including states and the private corporations. This reflects also the mixed common law/civil law composition of the Group of experts that drafted the document, a very important feature of the Pact that is not always reflected in the documents produced at the international level.

A different kind of criticism to the Pact is addressed by Susan Biniarz, cautioning that the existing equilibrium in the field of international environmental law may get disbalanced by the “juridification” of some principles in the Global Pact.<sup>34</sup> Biniarz warns that normative principles such as the precautionary ones are better left “non-binding”; adding them to the Global Pact may lead to excessively homogenising international environmental law, which, on the contrary, is extremely region-specific in nature. Against this thesis, it is sufficient to note that a vast majority of environmental jurists believe that combination of human rights with environmental principles is “the need of the hour”, and that the Global Pact exactly integrates human rights and environmental management principles in a coherent environmental law framework.

On the whole, we can conclude that the Global Pact is a document in which innovation and courage go hand in hand with the pursuit of an international consensus and the rigor in the formulation of the principles. Showing a realistic concern on international balances, the Global Pact has the ambition to represent an inescapable point of reference for the future generations of lawyers, legislators and policy-makers, as well as for economic actors and the civil society.

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<sup>33</sup> Kotzé & French, *supra* note 30, at 820. Here, the authors refer explicitly the Special Rapporteur on Human Rights and the Environment, John Knox, that has developed 16 Framework Principles (UN Human Rights Council 2018). Also, according to Kotzé and French, “if the Global Pact is to become the principal instrument on environmental rights, it should collectively and comprehensively elaborate the substantive and procedural aspects of the right to a healthy environment that are contained in these Framework Principles to the 16 Framework Principles developed by UN Special Rapporteur on Human Rights and Environment.”

<sup>34</sup> Susan Biniarz, *10 Questions to Ask About the Proposed “Global Pact for the Environment”*, SABIN CENTER FOR CLIMATE CHANGE LAW, (Aug. 2017), <http://columbiaclimatelaw.com/files/2017/08/Biniarz-2017-08-Global-Pact-for-the-Environment.pdf>; See also Margaret A Young, *Global Pact for the Environment: Defragging international law?*, EJIL: TALK! BLOG, (Aug. 29, 2018) <https://www.ejiltalk.org/global-pact-for-the-environment-defragging-international-law/>.